

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

withholding order was filed on May 27, 2026, which is more than 180 days after the writ of execution was issued in Placer County.

Accordingly, plaintiff's motion is denied because it was not timely brought.

2. M-CV-0084690 NAVY FEDERAL CREDIT UNION v. REITZ, CELESTE

Plaintiff's Motion to Set Aside Notice of Settlement and Restore Case to Active Status

Plaintiff moves to set aside the notice of settlement filed with the court on April 12, 2024, and restore the case to active status. The court previously denied plaintiff's motion on April 10, 2025, because plaintiff did not attach the parties settlement agreement for the court's consideration nor provide sufficient legal authority for the court to set aside the notice of settlement.

Plaintiff's moving papers, and declaration filed in support of the papers, contends the parties reached a settlement agreement and that defendant breached the settlement agreement such that the court should set aside the notice of settlement. However, the papers and declaration also contend no settlement agreement was executed. The court is unable to reconcile these conflicting points. Additionally, the court is unable to determine whether defendant breached any agreement reached between the parties as plaintiff again did not attach an agreement.

Plaintiff also points the court to California Rules of Court, Rule 3.1385, subdivision (b), which plaintiff contends "provides that if a conditional settlement is not completed as agreed, the plaintiff must promptly notify the court. In such event, the court may restore the matter to active status to proceed to trial or other resolution." (Plaintiff's Motion to Vacate Notice of Conditional Settlement, 1:18–20.) That reading is incorrect. California Rules of Court, Rule 3.1385, subdivision (b) provides in full

Except as provided in (c) or (d), each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (Cal. Rules of Court, rule 3.1385, subd. (b).)

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Nowhere in the Rule of Court does it require a party to notify the court about a conditional settlement not completed as agreed. And, again, it is unclear how defendant could not complete an agreement if, as plaintiff argues, one was never executed.

Accordingly, plaintiff's motion is denied without prejudice.

3. M-CV-0087130 WELLS FARGO BANK v. SEGON, JOSEPH

Plaintiff's Motion for Judgment on the Pleadings and of Nonappearance

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion for judgment on the pleadings is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading or based on facts which the court may judicially notice. (*Id.* subd. (d).) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.)

Pursuant to the court's order, defendant is deemed to have admitted all operative facts alleged in the complaint. Judgment on the pleadings is appropriate in these circumstances. (Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the principal amount of \$15,343.85, plus court costs in the amount of \$565 and attorney's fees in the amount of \$800, for a total judgment of \$16,708.85.

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